Exam

Introduction to IT-Law

15th October 2026

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Please elaborate in the form of an essay, how and where IT-Law affects people's lives and business activities. Refer to what has been discussed during the classes. Furthermore, in your essay, you are required and expected to express your individual position on the topics you choose to cover.

Your essay must be written in English. There is neither a minimum nor a maximum word count. Collaboration between students is strictly prohibited.

Please **disclose to which extent you have used generative AI to write your essay**.

By taking this exam I confirm the following: I herewith confirm disclosing any use of AI to fulfill my task.

Please begin writing your essay here:

I have not used generative AI in any way in this essay.

IT law affects peoples everyday lives in a plethora of different ways, most of which are invisible. This is naturally the case for most laws as, ideally (from the perspective of an ethical lawmaker, assuming that the current laws are the most ideal and enforceable ones) , they become so ingrained in society that no one notices their presence at all.

In my personal view, laws ought not to turn into entities, such that they go against the flow of everyday life (become particularly noticeable). Nevertheless, IT law covers various important aspects of peoples life, some of which I shall briefly discuss in the following paragraphs.

Over the past decades, the internet has become ingrained in most aspects of ordinary life, from connecting to family and friends, over education (take this exam as an example) into various aspects of commerce.

Something that's involved in most interactions with IT is data, so I will begin with this vital topic. In the European Union (U) the protection of ones personal data is set as a fundamental right, which works as a first barrier between individuals using the internet and entities trying to influence them. The general data protection regulation attempts to protect personal data from any unlicensed abuse, such as profiling. In broad terms personal data is any data which can be used to infer the identity of an individual about which the data is provided. (technically any data that relates to an identifiable natural person). Indeed, according to this regulation, consent must be given by the subject in order to be legally allowed to process data. Personally I greatly value my personal data and try to limit its availability even further. Thus I agree with the GDPR. However, I believe in the importance of an individuals control over such data and as such there are recent developments that worry me. One major point is the recently implemented age verification legislation (Summer 2026). As far as I'm aware the aim is to protect children and teenagers from age-inappropriate content. Which I still broadly agree with. However, looking at a recent implementation of this in great britain, where users were required to upload a government-issued ID to verify their age, I feel like this puts us farther away from any real protection of personal data.

Overall I think the EU is one of the most suitable and ethical instances of personal data protection but even so, I think we need a stronger focus on protecting users not only from invasive data collection by international corporations, but also by their own governing bodies.

When looking out from the perspective of innovators, designers, inventors etc. the first thing that springs to mind is the IP Law aspect of IT law. Naturally, defining intellectual property is tough specifically, but I will not delve into this semantic argument due to time constraints. Instead I shall focus on the guiding legislative and judicial framework given for IP. As we've been made aware, the EU works based on Lex loci protectionis:

"The law applicable to a non-contractual obligation arising from an infringement of an intellectual

property right shall be the law of the country for which protection is claimed"

– Art 8 Abs 1, Art 13 Rome II Regulation

This way of solving conflicting laws seems like a natural approach, considering that entities usually claim protection in the country in which they (mainly) reside, thus are at least vaguely familiar with its IP law. This consideration does not take companies as legal persons into account to a great degree, but as I'm a private person with no connections to companies or their leadership, I feel like I lack the necessary perspective to argue on their behalf.

Further, the legal definitions of what may constitute an "intellectual work" seems equally suitable, although there will always be edge cases. In this realm, I'm particularly interested in an attempt to deal with the onset of LLM and generative AI which are, at this point, known to scrape the web for input to train on, with little or no consideration given to the original authors and their legal right to protection of their work. Naturally this becomes harder as many AI companies, which would be the legal persons sued for IP infringement, reside in other territories, such as the USA or China. As an individual, any one author does not have the suitable resources to take on these monolithic corporations in a legal battle, so at least on a personal level, there is no easy way for retribution. As I strongly believe that the law and governing bodes (national and transnational) are responsible for representing their people in cases where they cannot do so themselves, I hope that the EU will find a way to step in and avoid unauthorized use of EU origin IP's for AI training. However, with the current state of affairs I remain doubtful that any endeavor in this direction will bear fruit. Nevertheless, on ethical grounds I strongly believe it must be attempted to the best of our ability.

Finally I want to mention e-commerce and related concepts. This was the topic of our second to last lecture, ad introduced us to the flow of web 1.0 – 4.0 and the incorporated legal rules, which rise in accordance with the different forms of trade available.

I remain impressed by the clear structure and legal framing for classifying the different was of e-commerce (B2B, C2B, definition of platforms etc.) Further I like the part about how "Member States may not, for reasons falling within the coordinated field, restrict the freedom to

provide information society services from another Member State " to ensure a fair market competition.

However, when recalling the different types of online contracts (distance and off-premises) and the distinctive requirements for those, I can't help but wonder, how the classification of these contracts is enforced. It seems infeasable that any platform that allows such contracts to be performed on it will be monitored. Further, how does prove that a customer was provided sufficient information about a trader. In principle this should be doable by monitoring equipment, but this would presumably not be in accordance wit the GDPR. So, from ym perspective, I cannot understand the importance of a distinction between these two types of contract. However, either one requires similar protection and information of the customer. Which seems to put a of of potential for abusing these contracts in the hands of customers. I wonder whether the current exceptions to the right to withdrawal, for example, are sufficient or whether there have been new categories that are currently mishandled.

The extension of this concern would be an interesting issue, not only from the legal perspective but also from a data gathering one: to consider how to predict new categories that fall outside/between current legal definitions and incorporate them swiftly. As the world keeps changing faster, I wonder how laws will be able to be kept up to date. Or how we can properly predict the important areas we need to prepare for work.